



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

December 23, 2014

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Jason Fernandez**
Tax Registry No. 940137
40 Precinct
Disciplinary Case Nos. 2011-5388 & 2012-7493

The above named member of the service appeared before Assistant Deputy Commissioner Claudia Daniels-DePeyster on April 16, 2014 and was charged with the following:

DISCIPLINARY CASE NO. 2011-5388

1. Said Police Officer, while assigned to the 40th Precinct, on or about and between December 26, 2009, and April 30, 2010, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer on multiple occasions assisted in the prevention of the processing and adjudication of multiple summonses issued to multiple motorists.

P.G. 203-10, Page 1, Paragraph 5

**PROHIBITED CONDUCT
GENERAL REGULATIONS**

DISCIPLINARY CASE NO. 2012-7493

1. Said Police Officer Jason Fernandez, assigned to the 40th Precinct, on or about August 21, 2011, while on-duty, after responding to an "assault in progress," failed to prepare a complaint report.

P.G. 202-21, Page 1, Paragraph 8

P.G. 207-07, Page 1, Paragraphs 1-3

P.G. 207-01, Page 1-6

**POLICE OFFICER, DUTIES AND
RESPONSIBILITIES
PRELIMINARY INVESTIGATION OF
COMPLAINTS (OTHER THAN VICE
RELATED OR NARCOTICS
COMPLAINTS)
COMPLAINT REPORTING SYSTEM**

2. Said Police Officer Jason Fernandez, while assigned to the 40th Precinct, on or about August 21, 2011, while on-duty, after responding to an "assault in progress," failed to notify the detective squad as required.

P.G. 207-07, Page 1, Paragraphs 1-5

**PRELIMINARY INVESTIGATION OF
COMPLAINTS (OTHER THAN VICE
RELATED OR NARCOTICS
COMPLAINTS)**

In a Memorandum dated October 7, 2014, Assistant Deputy Commissioner Claudia Daniels-DePeyster found the Respondent Guilty of Specification No. 1 in Disciplinary Case No. 2011-5388 and Not Guilty of Specification Nos. 1 and 2 in Disciplinary Case No. 2012-7493. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

Police Officer Fernandez's misconduct warrants the forfeiture of twenty-five (25) vacation days, five (5) suspension days, to be served, and one (1) year dismissal probation as a disciplinary penalty.


William J. Bratton
Police Commissioner



POLICE DEPARTMENT

October 7, 2014

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Jason Fernandez
Tax Registry No. 940137
40 Precinct
Disciplinary Case Nos. 2011-5388 & 2012-7493

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Disciplinary Case No. 2011-5388

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P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT
GENERAL REGULATIONS

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P.G. 202-21, Page 1, Paragraph 8 – POLICE OFFICER, DUTIES AND
RESPONSIBILITIES

P.G. 207-07, Page 1, Paragraphs 1-3 – PRELIMINARY INVESTIGATION
OF COMPLAINTS (OTHER THAN
VICE RELATED OR NARCOTICS
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P.G. 207-01, Page 1-6 COMPLAINT REPORTING SYSTEM

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P.G. 207-07, Page 1, Paragraph 5 PRELIMINARY INVESTIGATION
OF COMPLAINTS (OTHER THAN
VICE RELATED OR NARCOTICS
COMPLAINTS)

The Department was represented by Vivian Joo, Esq., Department Advocate's Office, and Respondent was represented by Michael Martinez, Esq., Worth, Longworth & London LLP. Respondent, through his counsel, entered a plea of Guilty in Disciplinary Case No. 2011-5388 and testified in mitigation of the penalty. In Disciplinary Case No. 2012-7493, Respondent entered a plea of Not Guilty. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Disciplinary Case No. 2011-5388

Respondent, having pleaded Guilty, is found Guilty as charged.

Disciplinary Case No. 2012-7493

Respondent is found Not Guilty.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Josue Gutierrez, Sergeant James Blondo, and Sergeant Welinton Gomez as witnesses.

Josue Gutierrez

Gutierrez is currently employed as a security guard. He testified that at approximately 2:00 a.m. on August 21, 2011, he was heading home from a bar and was a little intoxicated when he was attacked by three young black men. He described the attack: "I got hit in the side [by a man I had previously seen at the corner], and I fell, and I got back up, and started fighting back. Then I got kicked on the side, and I noticed there was another gentleman, and there was another one coming by like the car. I threw myself on the floor and started blocking myself." Gutierrez sustained cuts to his forehead, cheek, arm and back of the head. He sustained a stab wound to his left shoulder. His white shirt turned red with blood. Two cell phones and a wallet were taken from him. His wallet contained \$20.00 in cash, a debit card, a credit card, and his state identification card.

Because no taxi would stop for him, Gutierrez continued walking toward home. He saw his sister-in-law's boyfriend, Person B, outside on the street. He told Person B about the attack, and an ambulance subsequently arrived. The emergency medical technicians cut his shirt and pants and placed him in the ambulance on a stretcher. He at no point lost consciousness. Gutierrez's sister-in-law, Person A, was at the scene but Gutierrez

did not speak with her until later in the hospital. He received stitches and staples. No member of the Department spoke with Gutierrez while at the scene or in the hospital.

Later that day, after being released from the hospital, Gutierrez went to the 40 Precinct station house. He reported the incident because he figured getting a police report would get him out of paying the fee for a replacement identification card. The complaint report was categorized as "lost property." He explained why he signed the report: "I was angry at the time, and I just wanted to get a note to go to DMV and get a state ID. If I can get my bank cards and everything again. I remember it said lost property and I remember saying like why does it say this, but like it didn't matter to me at the time. There was no suspect, nobody questioned me, and I just wanted to get over it. I was still hurt at the time."

On cross-examination, Gutierrez testified that he has been convicted of a drug-related offense, and he served six months in jail in 2005. He has also been arrested on a warrant for not paying a summons. He did not feel his attackers take his wallet and cell phones, but he knew he had those items before the attack and he no longer had them after the attack. He did not recall seeing police at the scene. He later told an investigator that when he went to the station house after being released from the hospital he stated all he wanted was a report for lost property and that he did not want to file a report for the attack because he did not know who the perpetrators were and even if he did know who the perpetrators were, he would not say. According to Gutierrez, he did not have any bias against the police, and he would have provided information to the police had he been questioned at the scene.

Sergeant James Blondo

Blondo, a 22-year member of the Department, is assigned to the Quality Assurance Division (QAD). He testified that upon interviewing Gutierrez, the complaint assessment team determined that the lost property report should have been categorized as a robbery. He explained the significance of properly classifying complaint reports: "The [Department] uses crime stats to obtain timely intelligence to gather information to deploy personnel in the right direction for crime trends and also for Compstat purposes." Department's Exhibit (DX) 1 is the lost property report.

Blondo learned in his investigation of the misclassification that Respondent and a Police Officer Virgilio Bencosme were the sector that responded to the incident. Sergeant Welinton Gomez was their supervisor. The first 911 call came in at 2:26 a.m. as an assault in progress. That was the radio code (10-34) that was transmitted to the responding sector. In total, four calls came in about the incident. Each call was made by a different person at a different location. DX 2 and 2A are the compact disc recording and transcript of the radio transmissions for the job, showing that the dispatcher relayed the job as a 10-34 with a knife, male stabbed in the arm and bleeding from the arm and face area. DX 3 is the corresponding SPRINT Report. Respondent and Bencosme ultimately finalized the job as an aided case with an individual removed to the hospital.

As part of his investigation, Blondo interviewed Person A. Person A told him that she provided the officers at the scene with pedigree information. Blondo determined that Respondent handled the incident improperly. According to Blondo, Respondent should have prepared a complaint report in addition to an aided card and should have also notified the detective squad. He explained, "An aided report is basically just for medical

assistance, just routine a person requiring just regular medical conditions. A complaint report is required for a crime that occurs.” He further explained, “Whenever there is an assault, especially with a weapon, it’s a required notification to be made to the detective squad.” Both Bencosme and Gomez received charges for their actions that day.

On cross-examination, Blondo testified that the investigation was self-initiated by QAD, not by any sort of complaint made by Gutierrez. According to the investigative file, Gutierrez at one point told a QAD investigator that he was unconscious and did not remember speaking to the police at the scene. In a subsequent telephone interview with Blondo, however, Gutierrez did not say anything about being unconscious but rather stated that he knew there were police officers present, he could hear the officers asking questions, but he did not speak to them personally.

After Blondo’s investigation, the complaint report was upgraded to a robbery. Blondo did not know if the detective squad investigated the robbery. The 911 callers described the incident as a male who was slashed or a male who was bleeding. Blondo never spoke with anyone who actually witnessed Gutierrez being robbed. Blondo agreed that not everything that 911 callers state is transmitted from the radio dispatcher to officers on patrol. Officers have to conduct their own investigations and fill out the appropriate paperwork. When asked why Respondent and Bencosme should have known that Gutierrez was an assault victim even though Gutierrez did not speak with the officers and nobody at the scene saw the assault occur, Blondo replied, “Because obviously you have a man who was slashed several times. . . . A thorough investigation was not conducted.” Blondo conceded that it was possible for a person to be injured and bloodied without being the victim of an assault. Blondo learned in his investigation that the

officers at the scene, including Bencosme and Gomez, tried talking to the people who were there. Nobody at the scene saw what happened to Gutierrez since the actual crime occurred in another location. According to Blondo, however, Respondent and Bencosme should have accompanied Gutierrez to the hospital where a more thorough investigation could have been conducted.

Respondent, Bencosme, and Gomez all stated in interviews with Blondo that Gutierrez refused to speak with them and told them in sum and substance, "I don't want to fucking talk to you." Because it was a situation where nobody saw an assault and the person bleeding refused to provide information, Respondent and Bencosme had an obligation to make a referral to the sergeant. There is now an interim order in effect stating that reports should be done for uncooperative complainants. Blondo agreed that for an officer to classify a crime, he has to know or have good reason to believe that the crime took place. Blondo also agreed that had Gutierrez attacked someone and the other person used appropriate self-defense measures against Gutierrez, Gutierrez would not have been a crime victim. Gutierrez told Blondo that all he wanted was a report for lost property because he did not want to pay for a new license. Gutierrez signed the lost property report.

Person A gave the officers at the scene Gutierrez's pedigree information. The aided card prepared for the incident would have allowed the Department to locate Gutierrez if the need later arose. A complaint report does not take much longer to prepare than an aided card.

Upon questioning by the Court, Blondo testified that the fact that Gutierrez refused to cooperate with the members of the service at the scene was not a factor at all in the determination whether Respondent was able to take a complaint report.

Sergeant Welinton Gomez

Gomez, an eight-year member of the Department, is assigned to the 40 Precinct. As the midnight patrol supervisor, he responded to the 10-34 "assault in progress" on East 149 Street, where Respondent and Bencosme were already present. Gutierrez, who was already in an ambulance, refused to speak with Gomez. Gutierrez was conscious at the time and was bleeding from the face. Based on his observations and experience, Gomez determined that Gutierrez had been slashed with a knife. Bencosme later informed Gomez that he obtained Gutierrez's pedigree information from a woman at the scene. Gomez did not give Respondent or Bencosme any instructions because he expected them to prepare a complaint report. Because Gutierrez was the victim of a crime, it was not proper for Respondent and Bencosme to prepare just an aided card. According to Gomez, a complaint report has to be prepared even when a victim refuses to speak.

No notifications were made that day to the detective squad. Gomez explained that the squad should have been notified because Gutierrez was the victim of a felony. For his actions, Gomez pled guilty to failing to ensure that a complaint report was prepared, improper memo book entries and neglecting to make notifications. He forfeited 15 penalty days.

On cross-examination, Gomez testified that he did not recall giving Respondent and Bencosme instructions to do anything at the scene. He assumed that the officers would do what they were supposed to do. Gomez had been a sergeant for just a month at the time of the incident. Gomez agreed that it is normal procedure for the recorder to prepare paperwork for the sector, if it was Bencosme who prepared the aided card for the job it would have been Bencosme to prepare a complaint report, and a person can be injured without having been the victim of an assault.

Upon questioning by the Court, Gomez testified that he made efforts to speak with Gutierrez, but Gutierrez stated that he did not want to talk.

Respondent's Case

Respondent testified in his own behalf.

Respondent

Respondent, an eight-year member of the Department, is assigned to the 40 Precinct. For the last two years he has worked in anticrime. He explained that he was recruited for anticrime because his commanding officer was impressed with his motivation, arrest record, and paperwork. He has effected nearly 175 arrests during the course of his career. Most of these have been felony arrests. He is currently on full duty and had never been placed on modified duty status for any reason. He has received a rating of 4.5 on his last three evaluations. He has never before been the subject of Department charges.

On August 21, 2011, Respondent was working a midnight tour with Bencosme. He was the operator, and Bencosme was the recorder. They were steady partners, and Respondent explained that it was agreed that the recorder pretty much always did the paperwork for the sector. It was a weekend night, and the precinct was very busy. Upon responding to the assault in progress, Respondent noticed Gutierrez lying on the ground with a large crowd gathering. The officers put a rush on the ambulance and approached Gutierrez. Gutierrez had blood on his face and seemed to have lacerations on his face and arm. Respondent tried to find out what happened, but Gutierrez was very aggressive, combative, and uncooperative. Gutierrez told Respondent, "Fuck off, fuck you, I fell, I don't need you." Both Respondent and Bencosme were in uniform at the time.

While Bencosme stayed with Gutierrez, Respondent asked people in the crowd if they saw what happened. Nobody saw anything. Nobody claimed to have witnessed an assault. Respondent and Bencosme requested that Gomez respond to the scene. Bencosme, meanwhile, was able to obtain Gutierrez's pedigree information from Person A.

When Gomez arrived, Bencosme informed Gomez about the situation. Gomez went to the ambulance to speak with Gutierrez, but Gutierrez again refused to talk. At that point, Gomez instructed Bencosme to prepare an aided card. Respondent subsequently observed Bencosme prepare an aided card. Respondent explained why he did not think a complaint report was necessary: "At that point, besides his injuries, we had nothing else to go on. We didn't know how the injuries happened. We didn't know if it was a cross-complaint, if he was fighting with his brother, if he just got into a brawl, or if he just robbed somebody and they fended him off. We needed more information." Respondent continued, "If I would have had at least one witness to testify to the fact that

they saw what happened, it would have taken me an extra minute for my partner to do a 61." Respondent did not go to the hospital with Gutierrez since Gutierrez was stable and conscious and his girlfriend or sister was riding in the ambulance with him.

Respondent explained why the fact that the job came over the radio as an assault did not have much significance on which paperwork was prepared: "The radio run basically gives us an indication of what's going on. Kind of the alert level that we need to be on when we get there, what to look for. After we get there and we conduct an investigation and realize, like for this particular moment, it wasn't a 34." He continued, "If it was an assault, it would have been a 24 [an assault in the past] because it wasn't in progress. A lot of times we respond to situations where [it comes over the radio as] a robbery, and it's not a robbery. It could be a petty larceny. A burglary can be a robbery, a robbery can be a burglary." In other words, it is not an officer's job to simply put on the complaint report what the job came over as on the radio. Respondent testified that, based on what he knew at the time, it would not have been appropriate to deem Gutierrez an assault victim.

About the ticket-fixing charge, Respondent explained, "Since the beginning of my career, we were basically just taught and it was just known that it was a courtesy where we had, you know, when it came to a violation, we kind of had the discretion to either write the summons, not write the summons, and so forth. As long as it wasn't submitted . . . we still had that courtesy, the discretion." Respondent learned this in the 46 Precinct, where he did his field training. He did not think it was wrong to quash a summons upon request. It was common practice, something officers were taught by their supervisors and

more senior colleagues. Respondent never attempted to interfere with a summons that had already been submitted.

Respondent admitted that he was involved in four incidents of ticket fixing. One of the tickets had been issued to his personal vehicle for parking in a no-standing zone. He explained that he received the summons when he parked briefly to take his daughter inside to the restroom, and his bumper may have been sticking out into the no-standing area. He reached out to his union delegate, and the summons was "taken care of." The other summonses had been issued to his cousins and his fiancée's sister's husband. One was for a defective muffler, and another was for not wearing a seatbelt in the passenger's seat. Of the four summonses Respondent attempted to quash, he succeeded twice. The other two summonses were processed as normal. Respondent never attempted to get an officer to change his testimony in traffic court. He admitted his misconduct at his official Department interview, and he has not committed this type of misconduct since learning of the Department's policy on ticket fixing.

When asked why he was mitigating this charge, Respondent explained, "I understand what I did was wrong . . . and would like to take responsibility, but under the current assignment that I have right now, which I love doing and have been doing a little over two years now, by being on [dismissal] probation I would lose my position." Respondent was selected to be in anticrime after he had already been served with the pending charges. He has been awarded 13 medals for Meritorious Police Duty and six for Excellent Police Duty.

On cross-examination, Respondent agreed that he was responsible for paperwork even if Bencosme was the recorder. Respondent smelled alcohol on Gutierrez, but he did

not know if Gutierrez was intoxicated. Respondent did not know what Bencosme wrote on the aided card. The only time Respondent attempted to interview Gutierrez was at the scene. Respondent has had situations where a complainant was clearly the victim of a crime but did not want to go forward. In those cases, he wrote in the narrative section of the complaint reports that the complainants were uncooperative. Unlike the incident with Gutierrez, those other cases had “contributing factors.” Gomez never gave instructions not to prepare a complaint report.

Bencosme was a union delegate in the 40 Precinct. It was to Bencosme that Respondent made all requests to have summonses taken care of. His fiancée’s sister’s husband received his summons for reckless driving. Respondent called Bencosme about that summons to get the details of the incident because reckless driving is a charge that is often used improperly. He did not call Bencosme with the intent to get that summons quashed, and he told Bencosme not to worry about it.

Upon questioning by the Court, Respondent testified that working in anticrime is a step toward making the detective squad.

FINDINGS AND ANALYSIS

Disciplinary Case No. 2012-7493

Respondent stands charged with, after responding to an “assault in progress,” failing to prepare a complaint report and notify the detective squad. Respondent and his partner, Bencosme, responded to a radio run of an assault in progress with a knife. Respondent was the operator, and Bencosme was the recorder. Upon responding to the scene, Respondent saw Gutierrez lying on the ground with a large crowd gathering.

Respondent was specifically asked what he observed and he stated, "[H]e [Gutierrez] had blood on his face, seemed to have a laceration on his face and some kind of a cut on his arm as well." The officers called for an ambulance. Respondent tried to find out what happened, but Gutierrez was uncooperative. Respondent asked people in the crowd if they saw what happened, but nobody saw anything. The officers requested the response of the patrol supervisor, Gomez. Upon his arrival, Gomez attempted to speak with Gutierrez, but Gutierrez continued to be uncooperative. According to Respondent, Gomez at that point instructed Bencosme to prepare an aided card. Bencosme was able to get Gutierrez's pedigree information from Gutierrez's sister-in-law, and Respondent observed Bencosme prepare an aided card. The officers finalized the job as an aided case with an individual removed to the hospital.

As it turned out, Gutierrez was a robbery victim. Gutierrez admitted that he was intoxicated when he was attacked by three young men. He sustained cuts to his face and was stabbed in the shoulder. His attackers took his wallet and cell phones. Because a taxi would not stop for him, he walked toward home. It was at that point that Respondent and Bencosme arrived, though Gutierrez testified that he did not recall seeing police officers respond. (During the course of the investigation, Gutierrez at first claimed that he was unconscious, but he stated in a subsequent interview that he could hear police asking questions but did not speak to them personally.) Gutierrez was released from the hospital the same day.

The investigation into Respondent's alleged misconduct was self-initiated by QAD, not any sort of complaint made by Gutierrez. In his investigation, Blondo confirmed that the officers at the scene tried talking to the people in the area, but nobody

saw what happened to Gutierrez since the actual crime occurred in another location.

Blondo never spoke to anyone who actually witnessed the robbery.

The Court finds that Respondent provided a reasonable explanation for handling the job as an aided case. It is undisputed that Gutierrez was either unwilling or unable to provide the officers with any information. And because the incident occurred elsewhere, there were no witnesses at the location where the officers responded. The fact that the job came over the radio as a crime was not dispositive of anything since the radio code for a job is often different from what the job is in actuality. (A perfect example is that what came over the radio as a 10-34 assault in progress was actually a 10-20 past robbery).

Respondent explained that he did not think a complaint report was necessary because besides Gutierrez's injuries, the officers "had nothing else to go on." Respondent and Bencosme did not know how the injuries happened, if Gutierrez "was a cross-complaint, if he was fighting with his brother, if he just got into a brawl, or if he just robbed somebody and they fended him off." Respondent felt that more information was needed before reaching the conclusion that a crime had been committed. Respondent credibly testified that if there had been at least one witness to offer a statement as to what happened to Gutierrez, Bencosme would have had no issue with taking an extra minute to prepare a complaint report. Based on what was known at the time, however, Respondent and Bencosme could not assume that Gutierrez was a crime victim. Both Blondo and Gomez agreed that it was possible for a person to be injured without being a crime victim.

According to Blondo, Respondent and Bencosme should have at the very least accompanied Gutierrez to the hospital where a more thorough investigation could have been conducted. Respondent explained, however, that he did not go the hospital since Gutierrez was stable and conscious and had a relative riding with him in the ambulance. Moreover, the aided card prepared by Bencosme would have allowed the Department to locate Gutierrez if the need later arose for further investigation. There was no indication that Gutierrez would be more forthcoming at the hospital since he in essence told Respondent and his partner to “fu—off” at the scene. He was no more cooperative with Respondent’s supervisor Gomez at the scene either. In addition, Gutierrez testified at trial that when he went to the station house, he did not want to file a report about the assault, and even if he knew who the perpetrators were, he would not say.

According to Gomez, based on his training and experience he believed that Gutierrez had been slashed with a knife, and he assumed that the officers would prepare a complaint report. Unfortunately, Gomez never shared his assessment of the situation with his subordinates. That is, while Gomez spoke of a slashing with a knife, Respondent only testified to seeing blood and lacerations on Gutierrez’s face and arm and it is not clear whether Gomez relayed his observations of the knife wounds to Respondent and his partner. Gomez also only instructed them to do an aided card and made no mention of preparing a complaint report.

Based on the foregoing, the Court finds that Respondent articulated a reasonable explanation for his handling of the job as an aided case, and he is found Not Guilty.

PENALTY

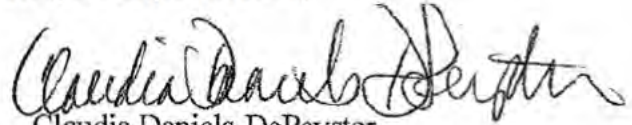
In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on January 9, 2006. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has pled guilty to on multiple occasions assisting in the prevention of the processing and adjudication of multiple summonses issued to multiple motorists. Respondent admitted that he was involved in four incidents of ticket fixing. Two of the summonses he successfully quashed; the other two were processed as normal. He admitted his misconduct at his official Department interview and has not committed this type of misconduct since learning of the Department's policy on ticket fixing.

Respondent asked that he not receive the standard penalty of 25 vacation days, five suspension days, and one year dismissal probation because if he were to be placed on dismissal probation he would lose his position on the anticrime team, an assignment he loves. The Court finds Respondent's argument persuasive. Respondent's misconduct occurred over four years ago. Since then he has proven to be an active, highly-decorated officer. In fact, he is so well regarded by his supervisors that he was selected to join the anticrime team even after he was served with the pending charges. If the Court is ever going to stray from the standard ticket-fixing penalty, this would be the case for it. The Department needs effective, enthusiastic officers like Respondent on its anticrime teams.

Because the Court does not believe that Respondent requires a period of dismissal probation, it is recommended that his penalty consist of the forfeiture of 25 vacation days and that Respondent be suspended for five days.

Respectfully submitted,



Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials



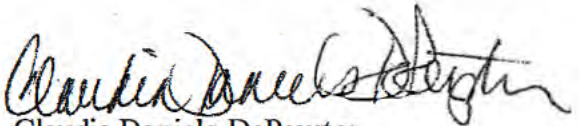
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER JASON FERNANDEZ
TAX REGISTRY NO. 940137
DISCIPLINARY CASE NOS. 2011-5388 & 2012-7493

Respondent received an overall rating of 4.5 “Extremely Competent/Highly Competent” on his last three annual performance evaluations. He has been awarded 28 medals: 11 for Excellent Police Duty and 17 for Meritorious Police Duty. In his eight years of service, he has effected 179 arrests. [REDACTED]

[REDACTED] He has no prior formal disciplinary record.

For your consideration.


Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials